



INVITATION TO TENDER

Title: Estimates of food consumption in bees
 Lot 1 – Estimates for honeybees
 Lot 2 – Estimates for non-Apis bees
Reference: OC/EFSA/PREV/2023/03
Procurement procedure: Open call

Dear Madam/Sir,

The European Food Safety Authority (EFSA) (referred to below as the *contracting authority*) is planning to award the contract(s) resulting from this procurement procedure. The procurement documents consist of the contract notice, this invitation letter, the draft contract(s) and tender specifications with their respective annexes. All documents are available in TED e-Tendering¹ only.

Economic operators interested in this contract are invited to submit a tender in one of the official languages of the European Union.

1. Submission of tenders.

Tenders must be submitted exclusively via the electronic submission system (e-Submission)² accessible from the corresponding call for tender in TED e-Tendering or the Funding and Tenders Opportunities portal (F&T portal)³. Tenders submitted in any other way (e.g. e-mail or by letter) will be disregarded.

In order to submit a tender using e-Submission, economic operators (each member of the group in the case of a joint tender) will need to register in the European Commission's [Participant Register](#) - an online register of organisations participating in EU calls for tenders or proposals. On registering each organisation obtains a Participant Identification Code (PIC, 9-digit number) which acts as its unique identifier in the above register. Instructions on how to create a PIC can be found on this [page](#). Economic operators already registered in the Participant Register shall reuse their existing PICs when preparing tenders in e-Submission.

The time-limit for receipt of tenders is indicated under Heading IV.2.2 of the contract notice where local time shall be understood as local time at the contracting authority's location (the location indicated under Heading I.1 of the contract notice). The time-limit is published also on the TED eTendering website which sends notifications to subscribed users when the call for tenders' data is modified.

Please note that it is not possible to submit a tender through eSubmission after the time-limit for receipt of tenders indicated in the contract notice and/or the

¹ Subscription to the call for tender in e-Tendering allows interested economic operators to receive e-mail notifications when new information or documents are published. Subscription is free of charge and does not involve any commitment to submit a tender.

² For detailed instructions on how to submit a tender please consult the e-Submission Quick Guide available at: https://webgate.ec.europa.eu/digit/opsys/esubmission/assets/documents/manual/quickGuide_en.pdf. The supported browsers, file types, size of attachments and other system requirements can be consulted at: <https://webgate.ec.europa.eu/fpfis/wikis/display/FTPortal/Public+procurement+procedures>. In case of technical problems, please contact the e-Submission Helpdesk (see contact details in the e-Submission Quick Guide) as soon as possible.

³ <https://ec.europa.eu/info/funding-tenders/opportunities/portal/screen/home>



TED eTendering website. To ensure tenders are submitted on time, tenderers are invited to get familiar with the system and the system requirements, in particular the accepted file formats, well in advance.

A tender received after the time-limit for receipt of tenders will be rejected. The submission receipt provided by e-Submission with the official date and time of receipt of the submission (timestamp) constitutes proof of compliance with the time-limit for receipt of tenders⁴.

Tenderers must ensure that their submitted tenders contain all the information and documents required by the contracting authority at the time of submission as set out in the procurement documents.

The Declaration on honour on exclusion (section A) and selection criteria (section B) shall be dated and signed, either by hand or by applying a qualified or an advanced electronic signature based on a qualified certificate, by an authorised representative of the signatory. When the declaration on honour is signed by hand, a scanned copy must be attached to the tender in e-Submission.

After submitting a tender, but before the deadline for receipt of tenders, a tenderer may definitively withdraw its tender⁵, or withdraw it and replace it with a new one⁶. A withdrawal receipt will be provided by e-Submission as proof of withdrawal.

No more than one tender per lot can be considered per tenderer. If the same tenderer submits more than one tender per lot, neither of which has been withdrawn as described above, only the latest tender will be considered. The tenderer may not refer to earlier submitted tenders to complement, clarify or correct its latest tender.

All costs incurred for the preparation and submission of tenders are to be borne by the tenderers and will not be reimbursed.

2. Legal effects of the invitation to tender and submission of a tender.

This invitation to tender is in no way binding on the contracting authority. The contracting authority's contractual obligation commences only when the contract with the successful tenderer is signed by both parties.

Up to the signature of the contract the contracting authority may cancel the procurement procedure without tenderers being entitled to claim any compensation. Any such decision must be substantiated and tenderers notified.

The validity period of the tender, during which tenderers may not modify the terms of their tenders in any respect, is indicated under Heading IV.2.6 of the contract notice.

Submission of a tender implies acceptance of all the terms and conditions set out in the procurement documents and, where appropriate, waiver of the tenderer's own general or

⁴ If no submission receipt is received in reasonable time after submission, please contact the e-Submission Helpdesk (see contact details in the above referred e-Submission Quick Guide) as soon as possible.

⁵ A submitted tender can be withdrawn directly in the "Procurement/My Submission(s)" area in the F&T Portal. For detailed instructions on how to withdraw a tender please consult the above referred e-Submission Quick Guide.

⁶ To submit a new version, the tenderer must create a new tender in e-Submission and include all the information and documents required in the procurement documents with the submission of a tender, even if some of them have already been included in the replaced tender.



specific terms and conditions. The submitted tender is binding on the tenderer to whom the contract is awarded for the duration of the contract.

By submitting a tender, tenderers (including partners and/or subcontractors) confirm that they are not subject to EU restrictive measures adopted under Article 29 of the Treaty on the European Union (TEU) or Article 215 of the Treaty on the Functioning of the EU (TFEU)⁷. EFSA reserves the right to refer to publicly available information to check whether an organization is subject to EU restrictive measure. The prohibition of being subject to EU restrictive measures applies throughout the whole performance of the contract.

3. Contacts during the procurement procedure.

Contacts between the contracting authority and tenderers are prohibited throughout the procedure save in exceptional circumstances and under the following conditions only:

3.1 Submission phase (before the time-limit for receipt of tenders)

Upon request, the contracting authority may provide additional information solely for the purpose of clarifying the procurement documents.

Any request for additional information must be made in writing only through the above TED e-Tendering website in the "Questions & answers" tab, by clicking "Create a question" (registration on TED e-Tendering is required to be able to create and submit a question).

The contracting authority is not bound to reply to requests for additional information received less than six working⁸ days before the time-limit for receipt of tenders.

The contracting authority may, on its own initiative, inform interested parties of any error, inaccuracy, omission, or any other type of clerical error in the text of the procurement documents.

Any additional information will be published on the TED e-Tendering website. The website will be updated regularly, and it is the tenderer's responsibility to check for updates and modifications during the submission period.

3.2 Opening of tenders

Tenders will be opened in a virtual opening session on the date and time indicated under Section IV.2.7 of the contract notice. A maximum of two representatives per tender may attend.

Tenderers may request to attend the virtual opening by sending an email to EFSAProcurement@efsa.europa.eu as soon as possible and not later than three hours before the scheduled start of the opening session. The email request must include the full name of the person requesting attendance at the online opening session, company name with indication of whether they are the lead tenderer or a partner in a joint offer (subcontractors are not permitted to attend the opening), email address to which the online meeting link should be sent and contact phone number. Tenderers should also attach the submission receipt generated by e-Submission. The contracting authority reserves the right to refuse access to the virtual opening session if the above information is not provided as required.

⁷ The EU Official Journal contains the list of entities subject to restrictive measures and is regularly updated.

⁸ Working days at the contracting authority's location indicated under Heading I.1 of the contract notice.



The representatives will receive an invitation by email with the meeting details and instructions how to attend the opening.

The public part of the opening session will be strictly limited to the following aspects:

- verification that each tender has been submitted in accordance with the submission requirements of the call for tender;
- announcement of the tenders received: the names of the tenderers (all members in the case of a joint tender) will be announced;

Tenderers not present at the opening session may send an information request to EFSAprocurement@efsa.europa.eu if they wish to be provided with the information announced during the public opening.

Once the contracting authority has opened the tender, it shall become its property and will be treated confidentially.

3.3 Evaluation phase (after the opening of tenders)

Except in duly justified cases, tenderers who have failed to submit evidence or to make statements as required in the procurement documents, shall be contacted by the contracting authority to provide the missing information, or clarify supporting documents.

The contracting authority may correct obvious clerical errors in the tender after confirmation of the correction by the tenderer.

Such information, clarification or confirmation shall not substantially change the tender.

3.4 Award phase

Tenderers will be notified of the outcome of this procurement procedure by e-mail. The notification will be sent to the e-mail address provided in the e-Submission application for the tenderer (group leader in case of a joint tender) under the section *Contact Info*. The same e-mail address will be used by the contracting authority for all other communications with the tenderer. It is the tenderer's responsibility to provide a valid e-mail address and to check it regularly.

4. Data protection.

If processing a reply to the invitation to tender involves the recording and processing of personal data (such as name, address and CV), such data will be processed pursuant to Regulation (EU) 2018/1725⁹ of 23 October 2018 on the protection of natural persons with regard to the processing of personal data by the Union institutions, bodies, offices and agencies and on the free movement of such data, and repealing Regulation (EC) No 45/2001 and Decision No 1247/2002/EC. Unless indicated otherwise, any personal data will be processed solely for evaluation purposes under the call for tenders by the contracting authority. Details concerning the processing of your personal data are available in the privacy statement at: https://ec.europa.eu/info/data-protection-public-procurement-procedures_en.

⁹ OJ L 295, 21.11.2018, p. 39



Detailed information on the processing of personal data in the context of EFSA procurement procedures is provided in the [Privacy Statement](#) available on EFSA's website.

If you would like to exercise your rights under Regulation (EU) 2018/1725, or if you have comments, questions or concerns, or if you would like to submit a complaint regarding the collection and use of your personal data, you can contact the data controller at EFSAProcurement@efsa.europa.eu by explicitly specifying your request.

The tenderer's personal data may be registered in the Early Detection and Exclusion System (EDES) if the tenderer is in one of the situations mentioned in Article 136 FR¹⁰. For more information, see the Privacy Statement on http://ec.europa.eu/budget/explained/management/protecting/protect_en.cfm).

5. Means of redress.

Tenderers may submit any observations concerning the procurement procedure to the contracting authority using the contact details under Heading I.1 of the contract notice. If tenderers believe that there is maladministration, they may lodge a complaint to the European Ombudsman within two years of the date from which they become aware of the facts which form the basis for the complaint (see <https://www.ombudsman.europa.eu>).

Within two months of notification of the outcome of the procedure (*award decision*), tenderers may launch an action for its annulment. Any request tenderers may make and any reply from the contracting authority, or any complaint for maladministration, will have neither the purpose nor the effect of suspending the time-limit for launching an action for annulment nor open a new period for launching an action for annulment. The body responsible for hearing annulment procedures is indicated under Heading VI.4.1 of the contract notice.

Yours sincerely,

Guilhem de Seze

Head of ASSESS Department

(e-signed)

Annexes to the invitation to tender:

- Annex I – Tender specifications and annexes
- Annex II – Draft contract and annexes

¹⁰ Regulation (EU, Euratom) 2018/1046 of the European Parliament and of the Council of 18 July 2018 on the financial rules applicable to the general budget of the Union, amending Regulations (EU) No 1296/2013, (EU) No 1301/2013, (EU) No 1303/2013, (EU) No 1304/2013, (EU) No 1309/2013, (EU) No 1316/2013, (EU) No 223/2014, (EU) No 283/2014, and Decision No 541/2014/EU and repealing Regulation (EU, Euratom) No 966/2012 (OJ L 193 of 30.07.2018, p.1).